

MOSELLE v SADEGI

20CV44668

PLAINTIFF'S MOTIONS FOR ISSUE, EVIDENCE AND MONETARY SANCTIONS

This civil action stems from a dispute over a cannabis business between Plaintiff Parker Moselle ("Plaintiff") and Defendant James Sadegi ("James¹").

Before the Court are two discovery motions filed by Plaintiff: 1) motion to compel responses to Request for Production of Documents ("RPD") and 2) motion to compel responses to Form Interrogatories, Set One ("FROG"). Plaintiff moves not to compel responses but to have the court sanction Defendant by disallowing him to bring a defense to any of Plaintiff's claims, except his illegality defense.

James has not filed an opposition.

I. Procedural History

On April 8, 2020, Plaintiff filed his Complaint against Defendant, and co-Defendants Priscilla P. Agoncillo, Sweet Corn, and Jeri and Barry Sadegi. The Complaint contained six causes of action: 1) judicial supervision for winding up of the Partnership, 2) declaratory relief related to Partnership assets, 3) quiet title, 4) accounting and constructive trust, 5) specific performance, and 6) partition of partnership property.

On September 27, 2021, after his demurrer was overruled, James filed an Answer. In the Answer, he generally denied most of the allegations against him and raised multiple affirmative defenses. Among the affirmative defenses were defenses that the Complaint was based on illegal conduct, laches, waiver, unclean hands, and ratification.

On September 13, 2024, Plaintiff served discovery via email upon Defendant's counsel. Responses were due on October 15, 2024. No responses were received. Plaintiff's counsel followed up on the requests on October 25, 2024, and on October 28, 2024, Defendant's counsel stated he was still working on responses. After no responses were provided, Plaintiff's counsel followed up on November 6 and 12, 2024. On January 10, 2025, the Court granted Plaintiff's motions to compel and ordered discovery compliance within ten (10) days ("Discovery Order.") On January 31, 2025, an email from Defendant's counsel confirmed receipt of the Discovery Order and stating that delay was due to health reasons and he was back at full strength and would make the

¹ Due to common surnames of the Defendants, the Court will use first names at times. No disrespect is intended.

discovery responses his top priority. (Separate Statement in support of RPD ¶ 9.) It is unclear when, but at some point James did provide responses to Requests for Admission.

On March 3, 2025, the parties stipulated to extend the trial date past the statutory five-year cutoff.

On August 15, 2025, the Court denied Defendants' motion for summary judgment on the grounds that there were too many issues of material fact.

On November 14, 2025, Plaintiff filed his motions to compel. The trial date in this case is set for January 7, 2026.

II. Legal Standard and Discussion

Pursuant to Code Civil Proc. section 2030.030(c), the Court "may impose an evidence sanction by an order prohibiting any party engaging in the misuse of the discovery process from introducing designated matters in evidence."

When considering an evidence sanction, the trial court tailors the sanction for such conduct to "fit the crime." (*Reedy v. Bussell* (2007) 148 Cal.App.4th 1272, 1293.) Discovery sanctions should be " 'appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery.' " (*Doppes v. Bentley Motors, Inc.* (2009), 174 Cal.App.4th 967, 992.)

Here, the Court is aware that James has apparently failed to comply with the Discovery Order – it is unclear from Plaintiff's motion whether James also failed to pay the required sanction. The Court also agrees that the failure to engage in discovery is a misuse of the process and that sanctions are appropriate. However, the Court also recognizes that the discovery statutes "evinced an incremental approach to discovery sanction, starting with monetary sanctions and ending with the ultimate sanction of termination." (*Doppes*, *supra* 174 Cal.App.4th at 992.)

The Discovery Order directed James to respond by within ten days, or by January 20, 2025. Plaintiff did not file any motion to compel or notify the Court that James had failed to comply. By March of 2025, Plaintiff was well aware that the five-year deadline for trial was approaching and stipulated – jointly with James – to extend the deadline. Again, no motion was made to compel compliance with the Discovery Order or to extend the discovery cutoff. Then, in August of 2025, Plaintiff responded to the motion for summary judgment, but made no reference or complaint that there was outstanding discovery. The Court points all this out to show that Plaintiff has been actively participating in motions over the last ten months since the Discovery Order but never

once brought a secondary motion to compel or motion to enforce the Discovery Order. Instead, Plaintiff waited until only weeks before the trial date to compel discovery responses that have been missing for over a year. This in and of itself seems to the Court to be a misuse of the discovery process – waiting over ten months to move to compel compliance with the Court Order and seeking the extreme sanction of preventing James from presenting any defense. (See Code Civ. Proc. § 2023.030(c) [misuse of the discovery process includes employing a discovery method in a manner or to an extent that causes “unwarranted annoyance, embarrassment, or oppression, or undue burden and expense”].) Such delay also has prevented the Court from being able to use “incremental” sanctions as intended by the discovery statutes because of the looming trial date.

Weighing these competing misuses of the discovery process, the Court finds that sanctions are warranted, but not evidence sanctions that would prohibit James from asserting defenses at trial or that would require the Court to adopt facts which favor Plaintiff.

Accordingly, the motion to compel is **GRANTED, WITH MODIFICATION**. James is ordered to pay monetary sanctions in the amount of \$999 by 5:00 p.m. on January 2, 2026. In the event defendant does not comply with this Order, plaintiff is given leave to refile the request for issue and evidence sanctions as a motion in limine to be heard and determined by the trial judge.

The clerk shall provide notice of this ruling to the parties forthwith. Plaintiff to submit a formal Order complying with Rule 3.1312 in conformity with this Ruling.

KILMADE v KAISER ENTERPRISES, INC.

24CV47369

PLAINTIFF'S MOTION FOR FINAL APPROVAL OF CLASS SETTLEMENT

Koll Kilmade ("Plaintiff") as the representative plaintiff, filed this class action lawsuit against Kaiser Enterprises, Inc. ("Defendant"). Plaintiff's Complaint alleges causes of action for wage and hour violations, including failure to pay overtime wages, wage statement violations, waiting time penalties and unfair competition. Plaintiff seeks penalties and damages under the Labor Code, Business and Professional Code, and the Private Attorney General's Act ("PAGA").

On September 15, 2025, this Court granted preliminary approval of a settlement between the parties ("Settlement.") Plaintiff has now filed a Motion for Final Approval of Class Action Settlement. The motion is unopposed.

I. Legal Standard

Generally, "questions about whether a [class action] settlement was fair and reasonable, whether notice to the class was adequate, whether certification of the class was proper, and whether the attorney fee award was proper are matters addressed to the trial court's broad discretion." (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 234-235, disapproved of on other grounds by *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260.) In determining whether a class settlement is fair, adequate and reasonable, the trial court should consider relevant factors, such as the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the stage of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction of the class members to the proposed settlement. (*Wershba*, supra, 91 Cal.App.4th at 244-245.) The Court must consider whether the proposed settlement is not the product of fraud or collusion and that the settlement, as a whole, is fair and reasonable. (*Id.* at 245.) However, " 'a presumption of fairness exists where: (1) the settlement is reached through arm's-length bargaining; (2) investigation and discovery are sufficient to allow